UNITED STATES DISTRICT COURT
SOUTHERN DISTRICT OF FLORIDA

CASE NO. 25-25405-CIV-ALTONAGA
(Crim. Case No. 19-20261-CR-ALTONAGA)
Eleventh Circuit No. 26-14135-D

SERGE NKORINA,
Movant-Appellant,

v.

UNITED STATES OF AMERICA,
Respondent-Appellee.

MOVANT-APPELLANT'S CERTIFICATE THAT NO TRANSCRIPT WILL BE ORDERED AND STATEMENT OF ISSUES

CERTIFICATE UNDER FED. R. APP. P. 10(b)(1)(B)

Movant-Appellant Serge Nkorina, proceeding pro se, certifies that he will not order any transcript for this appeal (Eleventh Circuit No. 26-14135-D).

No evidentiary hearing or other proceeding was held in this § 2255 case. The Court decided the motion on the written submissions and the existing record. ECF No. 10 at 1, 9. The transcripts from the underlying criminal case that bear on the issues are already filed. *See* ECF No. 5-1; Crim. ECF Nos. 230, 235–239. The Court of Appeals' docketing notice permits a certificate stating that no transcripts will be ordered in place of the Transcript Order Form. ECF No. 23 at 1.

STATEMENT OF ISSUES UNDER FED. R. APP. P. 10(b)(3)(A)

Movant-Appellant intends to present these issues on appeal, subject to the Court of Appeals' ruling on his application for a certificate of appealability:

(a) Whether the district court violated *Clisby v. Jones*, 960 F.2d 925 (11th Cir. 1992) (en banc), and *Rhode v. United States*, 583 F.3d 1289 (11th Cir. 2009), by failing to

resolve Movant's due-process claim that the Government suppressed favorable evidence under *Brady v. Maryland*, 373 U.S. 83 (1963), and *Giglio v. United States*, 405 U.S. 150 (1972), as alleged in his § 2255 motion (ECF No. 1 at 21–24); and

(b) Whether the district court abused its discretion in denying Rule 59(e) relief on the ground that Movant's argument that the court overlooked a claim in his original motion raised new arguments (ECF No. 18 at 5).

Respectfully submitted this ____ day of _____, 2026.

_____

SERGE NKORINA
Movant-Appellant, Pro Se
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Miami, FL 33177

CERTIFICATE OF SERVICE AND DECLARATION OF INMATE FILING

I certify that I placed the foregoing Certificate That No Transcript Will Be Ordered and Statement of Issues in the legal mail system at the Federal Correctional Institution — Miami, first-class postage prepaid, addressed to the Clerk of Court, United States District Court for the Southern District of Florida, 400 North Miami Avenue, Miami, Florida 33128, and mailed a copy, first-class postage prepaid, to the Clerk of Court, United States Court of Appeals for the Eleventh Circuit, 56 Forsyth Street, N.W., Atlanta, Georgia 30303. Counsel of record for the United States will be served through the Court's CM/ECF system when the document is docketed.

I declare under penalty of perjury under 28 U.S.C. § 1746 that the foregoing is true and correct, and that I deposited this document in the institution's internal mail system on _____, 2026, with first-class postage prepaid.

_____
SERGE NKORINA
Reg. No. 26432-509